taxable year imposed by part I of subchapter L of chapter 1 of such Code (as in effect prior to the effective date of the amendment made by section 2 of this Act), to the extent that such payments have not been credited or refunded, shall be deemed to be payments made on September 15, 1959, on account of the tax for such taxable year imposed by section 802(a) of such Code (as amended by section 2 of this Act). The provisions of section 6152(a)(1) of such Code shall not apply with respect to the tax for such taxable year imposed by section 802(a) of such Code (as amended by section 2 of this Act). 26 USC 6152.

SEC. 4. EFFECTIVE DATE.

Except as otherwise provided in this Act, the amendments made by this Act shall apply only with respect to taxable years beginning after December 31, 1957.

Approved June 25, 1959.

Public Law 86-70

AN ACT

June 25, 1959
[H. R. 7120]

To amend certain laws of the United States in light of the admission of the State of Alaska into the Union, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That this Act may be cited as the "Alaska Omnibus Act". Alaska Omnibus Act.

FEDERAL JURISDICTION

SEC. 2. (a) Section 4 of the Act of July 7, 1958 (72 Stat. 339), providing for the admission of the State of Alaska into the Union, is amended by striking out the words "all such lands or other property, belonging to the United States or which may belong to said natives", and inserting in lieu thereof the words "all such lands or other property (including fishing rights), the right or title to which may be held by said natives or is held by the United States in trust for said natives". 48 USC note prec. 21.

(b) Section 6(e) of said Act is amended by striking out the word "legislative" and inserting in lieu thereof the word "calendar". 72 Stat. 340. 48 USC note prec. 21.

TERMINATION OF APPLICATION OF CERTAIN FEDERAL LAWS

SEC. 3. Any Territorial law, as that term is defined in section 8(d) of the Act of July 7, 1958 (72 Stat. 339, 344), providing for the admission of the State of Alaska into the Union— 48 USC note prec. 21.

(a) which provides for the regulation of commerce within Alaska by an agency of the United States, and

(b) the application of which to the State of Alaska is continued solely by reason of such section 8(d), shall cease to apply to the State of Alaska on June 30, 1961, or on the effective date of any law enacted by the Legislature of the State of Alaska which modifies or changes such Territorial law, whichever occurs first.

SUGAR ACT

SEC. 4. Section 101 of the Sugar Act of 1948, as amended (7 U.S.C., supp. V, sec. 1101), is further amended by adding thereto a new subsection, to be designated subsection "(o)" and to read as follows: 61 Stat. 922.

"(o) The term 'continental United States' means the 49 States and the District of Columbia."

AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

SOIL BANK ACT

70 Stat. 195.

SEC. 5. Section 113 of the Soil Bank Act (7 U.S.C., supp. V, sec. 1837), is amended to read as follows: "This subtitle B shall apply to the continental United States, except Alaska, and, if the Secretary determines it to be in the national interest, to the State of Alaska, the Territory of Hawaii, the Commonwealth of Puerto Rico, and the Virgin Islands, and as used in this subtitle B, the term 'State' includes Hawaii, Puerto Rico, and the Virgin Islands."

ARMED FORCES

70A Stat. 3.

SEC. 6. (a) Title 10, United States Code, section 101(2), is amended by striking out the words "Alaska, Hawaii," and inserting in lieu thereof the word "Hawaii".

70A Stat. 37, 38.

(b) Title 10, United States Code, sections 802(11) and 802(12), are each amended by striking out the words "that part of Alaska east of longitude 172 degrees west,".

70A Stat. 148.

(c) Title 10, United States Code, section 2662(c), is amended by striking out the word "Alaska,".

NATIONAL BANK ACT

66 Stat. 314.

SEC. 7. Section 5192 of the Revised Statutes, as amended (12 U.S.C. 144), is further amended by striking out the words "in Alaska or".

FEDERAL RESERVE ACT

38 Stat. 251.

SEC. 8. (a) Section 1 of the Federal Reserve Act, as amended (12 U.S.C. 221), is further amended by deleting the period at the end of such section and inserting in lieu thereof the following: "; the term 'the continental United States' means the States of the United States and the District of Columbia."

38 Stat. 270.

(b) Section 19 of the Federal Reserve Act, as amended (12 U.S.C. 466), is further amended by striking the words "in Alaska or".

HOME LOAN BANK BOARD

47 Stat. 725.

SEC. 9. (a) Paragraph (3) of section 2 of the Federal Home Loan Bank Act, as amended (12 U.S.C. 1422(3)), is further amended by striking out the words "Territories of Alaska and Hawaii" and inserting in lieu thereof the words "Territory of Hawaii".

48 Stat. 134.

(b) Section 7 of the Home Owners' Loan Act of 1933, as amended (12 U.S.C. 1466), is further amended by striking out the words "continental United States, to the Territories of Alaska and Hawaii" and inserting in lieu thereof the words "continental United States (including Alaska), to the Territory of Hawaii".

NATIONAL HOUSING ACT

SEC. 10. The National Housing Act is amended by—

66 Stat. 603; 55 Stat. 61, 62, 55; 66 Stat. 603. 70 Stat. 1109.

(a) striking out the word "Alaska," in sections 9, 201(d), 207(a)(7), 601(d), 713(q), and 801(g) (12 U.S.C., secs. 1706d, 1707(d), 1713(a)(7), 1736(d), 1747*l*(q); supp. V, sec. 1748(g));

64 Stat. 53.

(b) striking out the words "the Territory of Alaska," in section 207(c)(2) (12 U.S.C., supp. V, sec. 1713(c)(2)), and inserting the word "Alaska" in lieu thereof;

63 Stat. 57.

(c) by striking out the words "the Territory of Alaska or in Guam" in section 214 (12 U.S.C., supp. V, sec. 1715d; 48 U.S.C., supp. V, sec. 484d), and inserting the words "Alaska, Guam," in lieu thereof; and

(d) striking out the word "Territory" in the two places where it appears in section 806 (12 U.S.C., supp. V, sec. 1748e), and inserting the word "State" in lieu thereof. 63 Stat. 570.

COAST GUARD

SEC. 11. Title 14, United States Code, section 634(b), is amended by striking out the words "and for the territory of" in both places where they appear therein. 63 Stat. 545.

SECURITIES AND EXCHANGE COMMISSION

SEC. 12. (a) Paragraph (6) of section 2 of the Securities Act of 1933, as amended (15 U.S.C. 77b(6)), is further amended by striking out the word "Alaska,". 48 Stat. 74.

(b) Paragraph (16) of section 3(a) of the Securities Exchange Act of 1934, as amended (15 U.S.C. 78c(a)(16)), is further amended by striking out the word "Alaska,". 48 Stat. 884.

(c) Paragraph (18) of section 202(a) of the Investment Advisers Act of 1940, as amended (15 U.S.C. 80b–2(a)(18)), is further amended by striking out the word "Alaska,". 54 Stat. 849.

(d) Paragraph (37) of section 2(a) of the Investment Company Act of 1940, as amended (15 U.S.C. 80a–2(a)(37)), is further amended by striking out the word "Alaska,". 54 Stat. 795.

(e) Paragraph (1) of section 6(a) of the Investment Company Act of 1940, as amended (15 U.S.C. 80a–6(a)(1)), is further amended by striking out the word "Alaska,". 54 Stat. 800.

SOIL CONSERVATION

SEC. 13. (a) Section 8(b) of the Soil Conservation and Domestic Allotment Act, as amended (16 U.S.C., supp. V, sec. 590h(b)), is further amended by inserting, immediately following the words "continental United States", the words ", except in Alaska". 52 Stat. 31.

(b) Section 17(a) of the Soil Conservation and Domestic Allotment Act, as amended (16 U.S.C. 590q(a)), is further amended by striking out the words "the United States, the Territories of Alaska and Hawaii" and inserting in lieu thereof the words "the States, the Territory of Hawaii", and by striking out the word "Alaska" the second time it appears therein. 49 Stat. 1151.

BALD EAGLES

SEC. 14. Section 1 of the Act of June 8, 1940 (16 U.S.C. 668), is amended by striking out the words "except the Territory of Alaska,". 54 Stat. 250.

WILDLIFE RESTORATION

SEC. 15. Section 8(a) of the Act of September 2, 1937, as amended (16 U.S.C., supp. V, sec. 669g–1), is further amended by striking out the words "the Alaska Game Commission,", "said Territory of Alaska,", "not exceeding $75,000 for Alaska, and", and "the Territory of Alaska,". 55 Stat. 633; 64 Stat. 399; 70 Stat. 473.

FISH RESTORATION

SEC. 16. Section 12 of the Act of August 9, 1950, as amended (16 U.S.C., supp. V, sec. 777k), is further amended by striking out the words "the Alaska Game Commission,", "said Territory of Alaska,", "not exceeding $75,000 for Alaska, and", and "the Territory of Alaska,". 64 Stat. 434; 70 Stat. 473.

CRIMINAL CODE

64 Stat. 1089.

SEC. 17. (a) Title 18, United States Code, section 5024, is amended by striking out the words "other than Alaska" and inserting in lieu thereof the words "including Alaska".

18 USC 4208 note.

(b) Section 6 of the Act of August 25, 1958 (72 Stat. 845, 847), is amended by striking out the words "other than Alaska" and inserting in lieu thereof the words "including Alaska".

(c) Subsections (a) and (b) of this section shall be effective on July 7, 1961, or on the date of the Executive order referred to in section 18 of the Act of July 7, 1958 (72 Stat. 339, 350), providing for the admission of the State of Alaska into the Union, whichever occurs first.

28 USC 81A note.

70A Stat. 626.

(d) Title 18, United States Code, section 1385, is amended by deleting the last sentence thereof.

EDUCATION

20 USC 403.

SEC. 18. (a) (1) Subsection (a) of section 103 of the National Defense Education Act of 1958 (72 Stat. 1580, 1582), relating to definition of State, is amended by striking out "Alaska," each time it appears.

20 USC 442.

(2) Paragraph (3) (B) of section 302(a) of such Act (72 Stat. 1580, 1588), relating to definition of continental United States for purposes of allotments for science, mathematics and modern foreign language instruction equipment, is amended by striking out "does not include Alaska" and inserting in lieu thereof "includes Alaska".

20 USC 588.

(3) Section 1008 of such Act (72 Stat. 1580, 1605), relating to allotments to territories, is amended by striking out "Alaska,".

39 Stat. 931.

(b) (1) Section 4 of the Act of February 23, 1917 (20 U.S.C. 14), relating to allotments for teacher-training, is amended by striking out "$90,000" and inserting in lieu thereof "$98,500". The proviso in the last paragraph of section 5 of such Act (20 U.S.C. 16) and so much of section 12 of such Act (20 U.S.C. 22) as follows the last semicolon shall not be applicable to Alaska prior to the third fiscal year which begins after the enactment of this Act.

39 Stat. 932, 935.

60 Stat. 775.

(2) Paragraph (1) of section 2 of the Vocational Education Act of 1946 (20 U.S.C. 15i), relating to definition of States and Territories, is amended by striking out "the Territories of Alaska and Hawaii" and inserting in lieu thereof "the Territory of Hawaii".

70 Stat. 928. 20 USC 15ggg.

(3) Subsection (e) of section 210 (20 U.S.C., supp. V, sec. 15jj(e)), and subsection (a) of section 307 of such Act (72 Stat. 1580, 1600), relating to definition of State, are each amended by striking out "Alaska,".

20 USC 645.

(c) Paragraph (13) of section 15 of the Act of September 23, 1950, as amended (72 Stat. 548, 558), relating to definition of State, is amended by striking out "Alaska,".

67 Stat. 532. 20 USC 238 and note.

(d) (1) The material in the parentheses in the first sentence of subsection (d) of section 3 of the Act of September 30, 1950, as amended, relating to determination of local contribution rate, is amended to read: "(other than a local educational agency in Hawaii, Puerto Rico, Wake Island, Guam, or the Virgin Islands, or in a State in which a substantial proportion of the land is in unorganized territory for which a State agency is the local educational agency)".

(2) The fourth sentence of such subsection is amended by inserting "(including Alaska)" after "continental United States" the first time it appears in such sentence. The fifth sentence of such subsection is amended by inserting "(including Alaska)" after "continental United States" the second time it appears in such sentence.

(3) The last sentence of such subsection is amended by striking out "Alaska," and by inserting after "the Virgin Islands," the following: "or in any State in which a substantial proportion of the land is in unorganized territory for which a State agency is the local educational agency,".

(4) Paragraph (8) of section 9 of such Act (20 U.S.C., supp. V, sec. 244(8)), relating to definition of State, is amended by striking out "Alaska,". 64 Stat. 1108.

IMPORTATION OF MILK AND CREAM

SEC. 19. Subsection (b) of section 9 of the Act of February 15, 1927 (21 U.S.C. 149(b)), is amended by inserting the words ", including Alaska" immediately following the words "continental United States". 44 Stat. 1103.

OPIUM POPPY CONTROL

SEC. 20. Section 12 of the Opium Poppy Control Act of 1942 (21 U.S.C. 188k) is amended by deleting therefrom the words "the Territory of Alaska,". 56 Stat. 1048.

HIGHWAYS

SEC. 21. (a) The Secretary of Commerce shall transfer to the State of Alaska by appropriate conveyance without compensation, but upon such terms and conditions as he may deem desirable, all lands or interests in lands, including buildings and fixtures, all personal property, including machinery, office equipment, and supplies, and all records pertaining to roads in Alaska, which are owned, held, administered by, or used by the Secretary in connection with the activities of the Bureau of Public Roads in Alaska, (i) except such lands or interests in lands, including buildings and fixtures, personal property, including machinery, office equipment, and supplies, and records as the Secretary may determine are needed for the operations, activities, and functions of the Bureau of Public Roads in Alaska after such transfer, including services or functions performed pursuant to section 44 of this Act; and (ii) except such lands or interests in lands as he or the head of any other Federal agency may determine are needed for continued retention in Federal ownership for purposes other than or in addition to road purposes.

(b) Notwithstanding any other provision of this section, any contract entered into by the Federal Government in connection with the activities of the Bureau of Public Roads in Alaska which has not been completed on the date of the transfer provided under subsection (a) hereof may be completed according to the terms thereof.

(c) (1) The State of Alaska shall be responsible for the maintenance of roads, including bridges, tunnels, and ferries, transferred to it under subsection (a) of this section, as long as any such road is needed for highway purposes.

(2) Federal-aid funds apportioned to Alaska under title 23, United States Code, for fiscal year 1960 and prior fiscal years, and unobligated on the date of enactment of this Act, may be used for maintenance of highways on the Federal-aid systems in Alaska. 72 Stat. 885.

(d) Effective July 1, 1959, the following provisions of law are repealed: Repeals.

(1) Title 23, United States Code, section 103(f); 72 Stat. 889.

(2) Title 23, United States Code, section 116(d); 72 Stat. 897.

(3) Title 23, United States Code, section 119; 72 Stat. 898.

(4) Title 23, United States Code, section 120(h), except that the portion of the first sentence thereof relating to the percentage of funds to be contributed by Alaska shall continue to apply to funds 72 Stat. 899.

apportioned to Alaska for fiscal year 1960 and prior fiscal years;

23 USC 156. (5) Sections 107 (b) and (d) of the Federal-Aid Highway Act of 1956 (70 Stat. 374, 377, 378);

(6) Section 2 of the Act of January 27, 1905 (33 Stat. 616), as amended (48 U.S.C. 322 and the following); and

(7) The Act of June 30, 1932 (47 Stat. 446), as amended (48 U.S.C. 321(a) and the following).

(e) Effective on July 1, 1959, the following provisions of law are amended:

72 Stat. 887. (1) The definition of the term "State" in title 23, United States Code, section 101(a), is amended to read as follows:

"The term 'State' means any one of the forty-nine States, the District of Columbia, Hawaii, or Puerto Rico.";

72 Stat. 889. (2) Title 23, United States Code, section 104(b), is amended by deleting the phrase ", except that only one-third of the area of Alaska shall be included" where it appears in paragraphs (1) and (2) of said section 104(b);

72 Stat. 896. (3) Title 23, United States Code, section 116(a), is amended by deleting the phrase "Except as provided in subsection (d) of this section," and by capitalizing the word "it" immediately following such phrase; and

72 Stat. 898. (4) Title 23, United States Code, section 120(a), is amended by deleting the phrase "subsections (d) and (h)" and by inserting in lieu thereof the phrase "subsection (d)".

INTERNAL REVENUE

68A Stat. 401. SEC. 22. (a) Section 2202 of the Internal Revenue Code of 1954 (relating to missionaries in foreign service), and sections 3121(e)(1), 3306(j), 4221(d)(4), and 4233(b) of such Code (each relating to a special definition of "State") are amended by striking out "Alaska,".

68A Stat. 424, 453; 72 Stat. 1283; 68A Stat. 501.

70 Stat. 644. (b) Section 4262(c)(1) of the Internal Revenue Code of 1954 (definition of "continental United States") is amended to read as follows:

"(1) CONTINENTAL UNITED STATES.—The term 'continental United States' means the District of Columbia and the States other than Alaska."

68A Stat. 534. (c) Section 4502(5) of the Internal Revenue Code of 1954 (relating to definition of "United States") is amended by striking out "the Territories of Hawaii and Alaska" and by inserting in lieu thereof "the Territory of Hawaii".

68A Stat. 568. (d) Section 4774 of the Internal Revenue Code of 1954 (relating to territorial extent of law) is amended by striking out "the Territory of Alaska,".

68A Stat. 904. (e) Section 7621(b) of the Internal Revenue Code of 1954 (relating to boundaries of internal revenue districts) is amended to read as follows:

"(b) BOUNDARIES.—For the purpose mentioned in subsection (a), the President may subdivide any State, Territory, or the District of Columbia, or may unite into one district two or more States or a Territory and one or more States."

68A Stat. 908. (f) Section 7653(d) of the Internal Revenue Code of 1954 is amended by striking out "its Territories or possessions" and inserting in lieu thereof "its possessions or the Territory of Hawaii".

68A Stat. 911. (g) Section 7701(a)(9) of the Internal Revenue Code of 1954 (relating to definition of "United States") is amended by striking out "the Territories of Alaska and Hawaii" and inserting in lieu thereof "the Territory of Hawaii".

(h) Section 7701(a)(10) of the Internal Revenue Code of 1954 (relating to definition of State) is amended by striking out "Territories" and inserting in lieu thereof "Territory of Hawaii". 68A Stat. 911.

(i) The amendments contained in subsections (a) through (h) of this section shall be effective as of January 3, 1959. Effective date.

COURTS

SEC. 23. (a) The Judicial Conference of the United States, with the assistance of the Administrative Office of the United States Courts, shall conduct a study, including a field survey, of the Federal judicial business arising in the State of Alaska with a view toward directing the United States Court of Appeals for the Ninth Circuit to hold such terms of court in Anchorage or such other Alaskan cities as may be necessary for the prompt and efficient administration of justice. Survey.

(b) Title 28, United States Code, section 81A, is amended by inserting the word "Ketchikan," immediately following the word "Juneau,". 72 Stat. 348.

(c) Such authority as has been exercised by the Attorney General heretofore, with regard to the Federal court system in Alaska, pursuant to section 30 of the Act of June 6, 1900 (48 U.S.C. 25), shall continue to be exercised by him after the court created by section 12(b) of the Act of July 7, 1958 (72 Stat. 339, 348), providing for the admission of the State of Alaska into the Union, is established. 31 Stat. 332. 72 Stat. 348. 28 USC 81A.

(d) All balances of public moneys received by the clerks of each division of the District Court for the Territory of Alaska pursuant to section 10 of the Act of June 6, 1900, as amended (48 U.S.C. 107), which are on hand after all payments ordered by that court and approved by the Administrative Office of the United States Courts shall have been made, shall be covered into the Treasury of the United States as required by law, and the Secretary of the Treasury shall pay the amounts so covered, which are hereby appropriated, to the State of Alaska. 31 Stat. 325.

VOCATIONAL REHABILITATION ACT

SEC. 24. (a) Subsection (g) of section 11 of the Vocational Rehabilitation Act (29 U.S.C., supp. V, sec. 41(g)), relating to definition of State, is amended by striking out "Alaska,". 68 Stat. 661.

(b)(1) Subsection (i) and paragraph (1) of subsection (h) of such section, relating to definition of allotment percentages and Federal shares for purposes of allotment and matching for vocational rehabilitation services, are each amended by striking out "(excluding Alaska)" and inserting in lieu thereof "(including Alaska)". *Post*, p. 153.

(2) Paragraph (1) of such subsection (h) is further amended by striking out "Alaska,".

(3) Such subsection (i) is further amended by striking out "Hawaii and Alaska" in clause (B) and inserting in lieu thereof "Hawaii".

GOLD RESERVE ACT

SEC. 25. Section 15 of the Gold Reserve Act of 1934, as amended (31 U.S.C. 444), is further amended by striking out the words ", the District of Columbia, and the Territory of Alaska" and inserting in lieu thereof the words "and the District of Columbia". 48 Stat. 344.

SILVER PURCHASE ACT

SEC. 26. Section 10 of the Silver Purchase Act of 1934 (31 U.S.C. 448b), is amended by striking out the words ", the District of Columbia, and the Territory of Alaska" and inserting in lieu thereof the words "and the District of Columbia". 48 Stat. 1181.

NATIONAL GUARD

70A Stat. 596.

SEC. 27. Title 32, United States Code, section 101(1), is amended by striking out the words "Alaska, Hawaii," and inserting in lieu thereof the word "Hawaii".

WATER POLLUTION CONTROL ACT

62 Stat. 1158.

SEC. 28. (a) Paragraph (1) of section 5(h) of the Federal Water Pollution Control Act (33 U.S.C., supp. V, sec. 466d(h)(1)), relating to Federal share for purposes of matching for program operation, is amended by striking out "(excluding Alaska)" and inserting in lieu thereof "(including Alaska)" and by striking out, in clause (B), "and Alaska".

70 Stat. 506.

(b) Subsection (d) of section 11 of such Act (33 U.S.C., supp. V, sec. 466j(d)), is amended by striking out "Alaska,".

VETERANS' ADMINISTRATION

72 Stat. 1170.

SEC. 29. (a) Title 38, United States Code, section 903(b), is amended by striking out the words ", or to the place of burial within Alaska if the deceased was a resident of Alaska who had been brought to the United States as a beneficiary of the Veterans' Administration for hospital or domiciliary care"; by inserting the word "continental" immediately before the words "United States" the second time they appear in such section; and by inserting, immediately following the words "continental United States" in both places where they appear in such section, the parenthetical phrase "(including Alaska)".

72 Stat. 1220.

(b) Title 38, United States Code, section 2007(c), is amended by striking out the word "Alaska,".

FEDERAL PROPERTY AND ADMINISTRATIVE SERVICES ACT

63 Stat. 378.

SEC. 30. (a) Subsection (f) of section 3 of the Federal Property and Administrative Services Act of 1949 (40 U.S.C. 472(f)), is amended by striking out the words ", Hawaii, Alaska," and inserting in lieu thereof the words "(including Alaska), Hawaii,".

69 Stat. 722.

(b) Subsection (a) of section 702 of such Act (40 U.S.C., supp. V, sec. 522(a)), is amended by striking out the words "Territories of Alaska and Hawaii" and inserting in lieu thereof the words "Territory of Hawaii".

PUBLIC HEALTH SERVICE ACT

58 Stat. 682.

SEC. 31. (a) Subsection (f) of section 2 of the Public Health Service Act (42 U.S.C. 201(f)), relating to definition of State, is amended by striking out "Hawaii, Alaska," and inserting in lieu thereof "Hawaii," and by striking out ", the District of Columbia, or Alaska" and inserting in lieu thereof "or the District of Columbia".

Repeal.

(b)(1) Effective July 1, 1959, section 371 of the Public Health Service Act, as added by the Alaska Mental Health Enabling Act

70 Stat. 709.

(42 U.S.C., supp. V, sec. 273), is repealed.

70 Stat. 710.

(2) Subsection (a) of section 372 of such Act (42 U.S.C., supp. V, sec. 274(a)), is amended by striking out "the Territory of".

(3) Subsections (b), (c), and (e) of such section are each amended by striking out "the Territory" each time it appears and inserting in lieu thereof "Alaska".

(4) Such subsection (e) is further amended by striking out "the Territory's" and inserting in lieu thereof "Alaska's".

(c)(1) Subsection (a) of section 631 of such Act (42 U.S.C., supp. V, sec. 291i(a)), relating to definition of allotment percentage for purposes of allotments for construction, is amended by striking out "(excluding Alaska)" and inserting in lieu thereof "(including Alaska)" and by striking out "for Alaska and Hawaii shall be 50 per centum each" in clause (2) and inserting in lieu thereof "for Hawaii shall be 50 per centum". 60 Stat. 1046.

(2) Subsection (d) of such section, relating to definition of State, is amended by striking out "Alaska,".

SOCIAL SECURITY ACT

SEC. 32. (a) Paragraph (8) of section 1101(a) of the Social Security Act (72 Stat. 1013, 1050), relating to definition of Federal percentage for purposes of matching for public assistance grants, is amended by striking out "Alaska and" in clause (ii) of subparagraph (A) and by striking out "(excluding Alaska)" in subparagraphs (A) and (B) and inserting in lieu thereof "(including Alaska)". 42 USC 1301.

(b)(1) Subsection (a) of section 524 of the Social Security Act (72 Stat. 1013, 1054), relating to definition of allotment percentage for purposes of allotments for child welfare services, is amended by striking out "50 per centum in the case of Alaska and" in clause (B).

(2) Subsection (b) of such section, relating to definition of Federal share for purposes of matching for child welfare services, is amended by striking out "50 per centum in the case of Alaska and" in clause (2).

(3) Such subsections (a) and (b), and subsection (c) of such section, relating to promulgation of Federal shares and allotment percentages, are each amended by striking out "(excluding Alaska)" and inserting in lieu thereof "(including Alaska)".

(c)(1) The last sentence of section 202(i) of the Social Security Act (42 U.S.C., supp. V, sec. 402(i)), is amended by striking out "forty-eight" and inserting in lieu thereof "forty-nine". 67 Stat. 580.

(2) Subsections (h) and (i) of section 210 of such Act (42 U.S.C. 410(h), (i)), relating to definitions of State and United States for purposes of old-age, survivors, and disability insurance, are each amended by striking out "Alaska,". 64 Stat. 500.

(d)(1) Paragraph (1) of section 1101(a) of the Social Security Act (42 U.S.C., supp. V, sec. 1301(a)(1)), relating to definition of State, is amended by striking out "Alaska, Hawaii," and inserting in lieu thereof "Hawaii". 49 Stat. 647.

(2) Paragraph (2) of such section (42 U.S.C. 1301(a)(2)), relating to definition of United States, is amended by striking out "Alaska,".

CONGRESSIONAL RECORD

SEC. 33. Section 73 of the Act of January 12, 1895, as amended (44 U.S.C., supp. V, sec. 183), is further amended by striking out the word "Alaska,". 49 Stat. 1549.

FEDERAL REGISTER

SEC. 34. Section 8 of the Federal Register Act (44 U.S.C. 308) is amended by striking out the parenthetical phrase "(not including Alaska)" and inserting in lieu thereof the parenthetical phrase "(including Alaska)". 49 Stat. 502.

AIRPORTS

SEC. 35. (a) The Administrator of the Federal Aviation Agency is authorized and directed to transfer to the State of Alaska by appropriate conveyance, and subject to such terms and conditions as

he may deem appropriate, all the right, title, and interest of the United States in and to the public airports constructed and operated pursuant to the Act of May 28, 1948, as amended (48 U.S.C. 485 and the following), including all the land, buildings, structures, facilities, equipment, and other personal property appurtenant thereto and necessary for the operation thereof, except for such property, real or personal, as the Administrator may determine is needed for the performance of functions of the United States in Alaska after such transfer. Such transfer shall be without monetary consideration to the United States.

62 Stat. 277.

(b) Notwithstanding any other provisions of this section, any contract entered into by the Federal Aviation Agency in connection with its activities with respect to public airports constructed and operated pursuant to the Act of May 28, 1948, as amended (48 U.S.C. 485 and the following), which has not been completed by the date of enactment of this Act, may be completed according to the terms thereof.

62 Stat. 277.

SELECTIVE SERVICE

SEC. 36. Section 16(b) of the Universal Military Training and Service Act, as amended (50 U.S.C., app., sec. 466(b)), is further amended by striking out the word "Alaska,".

62 Stat. 624.

REAL PROPERTY TRANSACTIONS

SEC. 37. Section 43(c) of the Act of August 10, 1956 (50 U.S.C., app., supp. V, sec. 2285(c)), is amended by striking out the word "Alaska,".

70A Stat. 636.

RECREATION FACILITIES

Repeal.

SEC. 38. Section 2 of the Act of May 4, 1956 (70 Stat. 130), is hereby repealed. There are hereby authorized to be appropriated for the fiscal year ending June 30, 1960, such sums as may be necessary to complete the construction of facilities described in section 1 of such Act, as amended by the Act of August 30, 1957 (71 Stat. 510), if construction was begun prior to June 30, 1959, and to maintain the facilities pending their transfer pursuant to such section.

AIRCRAFT LOAN GUARANTEES

49 USC 1324 note.

SEC. 39. Section 3 of the Act of September 7, 1957 (71 Stat. 629), is amended by striking out the words "Territory of Alaska" and inserting in lieu thereof the words "State of Alaska".

DEFENSE BASE ACT

SEC. 40. (a) Paragraphs (2) and (3) of section 1(a) of the Defense Base Act, as amended (55 Stat. 622; 42 U.S.C. 1651 and the following), are amended by striking out "Alaska;" in the parenthetical phrase in each paragraph.

(b) Paragraph (6) of section 1(a) of that Act is amended by striking out "or in Alaska or the Canal Zone".

(c) Section 1(b) of that Act is amended by striking the period at the end of paragraph (3), inserting in lieu thereof a semicolon, and adding the following paragraph: "(4) the term 'continental United States' means the States and the District of Columbia."

TIMBER REMOVAL

SEC. 41. The Act of March 3, 1891 (26 Stat. 1093), as amended (16 U.S.C. 607), is further amended by deleting the words "Territory of Alaska" and the words "or Territory" where they there appear and by inserting the word "Alaska," after the words "In the State of".

WAR HAZARDS COMPENSATION ACT

SEC. 42. (a) Paragraphs (2), (3), and (5) of section 101(a) of the War Hazards Compensation Act, as amended (56 Stat. 1028; 42 U.S.C. 1701 and the following), are amended by striking out "or in Alaska or the Canal Zone".

(b) Section 104 of that Act is amended by adding the following new subsection at the end thereof:

"(c) The provisions of this section shall not apply with respect to benefits on account of any injury or death occurring within any State."

(c) Section 201 of that Act is amended by adding the following new subsection at the end thereof:

"(f) the term 'continental United States' means the States and the District of Columbia."

BUY AMERICAN ACT

SEC. 43. Section 1(b) of Title III of the Act of March 3, 1933 (41 U.S.C. 10c(b)), is amended by striking out the word "Alaska,". 47 Stat. 1520.

TRANSITIONAL GRANTS

SEC. 44. (a) In order to assist the State of Alaska in accomplishing an orderly transition from Territorial status to statehood, and in order to facilitate the assumption by the State of Alaska of responsibilities hitherto performed in Alaska by the Federal Government, there are hereby authorized to be appropriated to the President, for the purpose of making transitional grants to the State of Alaska, the sum of $10,500,000 for the fiscal year ending June 30, 1960; the sum of $6,000,000 for each of the fiscal years ending June 30, 1961, and June 30, 1962; and the sum of $3,000,000 for each of the fiscal years ending June 30, 1963, and June 30, 1964.

(b) The Governor of Alaska may submit to the President a request that a Federal agency continue to provide services or facilities in Alaska for an interim period, pending the provision of such services or facilities by the State of Alaska. Such interim period shall not extend beyond June 30, 1964. In the event of such request, and in the event of the approval thereof by the President, the President may allocate, at his discretion, to such agency the funds necessary to finance the provision of such services or facilities. Such funds shall be allocated from appropriations made pursuant to subsection (a) hereof, and the amount of such funds shall be deducted from the amount of grants available to the State of Alaska pursuant to such subsection. Interim services by U.S. agency.

(c) After the transfer or conveyance to the State of Alaska of any property or function pursuant to the Act of July 7, 1958 (72 Stat. 339), providing for the admission of the State of Alaska into the Union, or pursuant to this Act or any other law, and until June 30, 1964, the head of the Federal agency having administrative jurisdiction of such property prior to its transfer or conveyance may contract with the State of Alaska for the performance by such agency, on a reimbursable basis, of some or all of the functions authorized to be performed by it in Alaska immediately preceding such conveyance or transfer. 48 USC note prec. 21.

TRANSFER OF PROPERTY

SEC. 45. (a) If the President determines that any function performed by the Federal Government in Alaska has been terminated or curtailed by the Federal Government and that performance of such function or substantially the same function has been or will be assumed by the State of Alaska, the President may, until July 1, 1964, in his discretion, transfer and convey to the State of Alaska, without reimbursement, any property or interest in property, real or personal, situated in Alaska which is owned or held by the United States in connection with such function, the assumption of which function is pursuant to this Act or the Act of July 7, 1958 (72 Stat. 339).

48 USC note prec. 21.

(b) Structures and improvements of block 32 of the city of Juneau granted to the State of Alaska by section 6(c) of the Act providing for the admission of Alaska into the Union (72 Stat. 339, 340), shall include all furnishings and equipment in the structure known as the Governor's mansion, or used in the operation or maintenance thereof.

48 USC note prec. 21.

CLAIMS COMMISSION

SEC. 46. (a) In the event that any disputes arise between the United States and the State of Alaska prior to January 1, 1965, concerning the transfer, conveyance, or other disposal of property to the State of Alaska pursuant to section 6(e) of the Act of July 7, 1958 (72 Stat. 339, 340), providing for the admission of the State of Alaska into the Union, or pursuant to this Act, the President is authorized (1) to appoint by and with the advice and consent of the Senate a temporary commission of three persons, to consider, ascertain, adjust, determine, and settle such disputes, and (2) to make such rules and regulations as may be necessary to establish such temporary commission or as may be necessary to terminate such temporary commission at the conclusion of its duties. In carrying out its duties under this section, such commission may hold such hearings, take such testimony, sit and act at such times and places, and incur such expenditures as the commission deems necessary. No commission shall be appointed under authority of this subsection after June 30, 1965.

48 USC note prec. 21.

(b) The commission may, without regard to the civil service laws and the Classification Act of 1949, employ and fix the compensation of such employees as it deems necessary to carry out its duties under this section. The commission is authorized to use the facilities, information, and personnel of the departments, agencies, and establishments of the executive branch of the United States Government which it deems necessary to carry out its duties; and each such department, agency, and instrumentality is authorized to furnish such facilities, information, and personnel to the commission upon request made by the commission. The commission shall reimburse each such department, agency, or instrumentality for the services of any personnel utilized. The commission may establish such procedures, rules, and regulations as may be necessary to carry out its duties under this section.

63 Stat. 954. 5 USC 1071 note.

(c) No member of such commission shall be an officer or employee of the United States or of the State of Alaska. Any commissioner may be removed by the President for inefficiency, neglect of duty, or malfeasance in office. A vacancy in the commission shall not impair the right of the remaining commissioners to exercise all the powers of the commission. Each member of the commission shall be paid compensation at the rate of $50 per day for each day spent in the

work of the commission, shall be reimbursed for actual and necessary travel expenses, and shall receive a per diem allowance in accordance with the provisions of the Travel Expense Act of 1949, as amended, when away from his usual place of residence.

63 Stat. 166.
5 USC 835 note.

(d) There are hereby authorized to be appropriated such sums as may be necessary to enable the commission to perform its duties under this section.

EFFECTIVE DATES

SEC. 47. (a) The amendments made by paragraph (2) of subsection (a) of section 18, by subsection (a) of section 28, by paragraph (1) of subsection (c) of section 31, by subsections (a) and (b) of section 32, and, except as provided in subsection (c) of this section, by subsection (b) of section 24, shall be applicable in the case of promulgations of Federal shares, allotment percentages, allotment ratios, and Federal percentages, as the case may be, made after satisfactory data are available from the Department of Commerce for a full year on the per capita income of Alaska, and for this purpose such promulgations shall, before such data for the full period required by the applicable statutory provision as so amended are available from the Department of Commerce, be based on satisfactory data available from such Department for such one full year or, when such data for a two-year period are available, for such two years.

(b) The amendments made by paragraphs (1) and (3) of subsection (a) of section 18 shall be applicable, in the case of allotments under section 302(b) or 502 of the National Defense Education Act of 1958, for fiscal years beginning July 1, 1959, and, in the case of allotments under section 302(a) of such Act, in the case of allotments based on allotment ratios, promulgated under such section 302(a), to which the amendment made by paragraph (2) of subsection (a) of section 18 of this Act is applicable.

Allotment ratios.

72 Stat. 1588, 1592.
20 USC 442, 482.

(c)(1) The allotment percentage determined for Alaska under section 11(h) of the Vocational Rehabilitation Act, as amended by this Act, for the first, second, third, and fourth years for which the amendments made by this Act are applicable to such section shall be increased by 76 per centum, 64 per centum, 52 per centum, and 28 per centum, respectively, of the difference between such allotment percentage for the year involved and 75 per centum.

Allotment percentage.
Ante, p. 147.
29 USC 41.

(2) The Federal share for Alaska determined under section 11(i) of the Vocational Rehabilitation Act, as amended by this Act, for the first year for which the amendments made by this Act are applicable to such section shall be increased by 70 per centum of the difference between such Federal share for such year and 60 per centum.

Federal share.
Ante, p. 147.
29 USC 41.

(3) If such first year for which such amendments made by this Act are applicable in any fiscal year ending prior to July 1, 1962, the adjusted Federal share for Alaska for such year for purposes of section 2(b) of the Vocational Rehabilitation Act shall, notwithstanding the provisions of paragraph (3)(A) of such section 2(b), be the Federal share determined pursuant to paragraph (2) of this subsection.

68 Stat. 653.
29 USC 32.

(d) The amendments made by paragraphs (2) and (3) of subsection (b), by subsection (c), and by paragraph (4) of subsection (d) of section 18; by subsection (a) of section 24; by subsection (b) of section 28; by subsection (a), by subparagraphs (2), (3), and (4) of subsection (b), and by paragraph (2) of subsection (c) of section 31; by paragraph (2) of subsection (c) and by subsection (d) of section 32; and, except as provided in subsection (b) of this section by paragraph (1) of subsection (a) of section 18, shall be effective on January 3, 1959.

(e) The amendment made by paragraph (1) of subsection (c) of section 32 shall apply in the case of deaths occurring on or after January 3, 1959.

(f) The amendments made by paragraph (1) of subsection (b) and paragraphs (1), (2), and (3) of subsection (d) of section 18 shall be applicable for fiscal years beginning July 1, 1959.

(g) The amendments in sections 40 and 42 shall take effect when enacted: *Provided, however*, That with respect to injuries or deaths occurring on or after January 3, 1959, and prior to the effective date of these amendments, claims filed by employees engaged in the State of Alaska in any of the employments covered by the Defense Base Act (and their dependents) may be adjudicated under the Workmen's Compensation Act of Alaska instead of the Defense Base Act.

55 Stat. 622.
42 USC 1651-1654.

DEFINITION OF "CONTINENTAL UNITED STATES"

SEC. 48. Whenever the phrase "continental United States" is used in any law of the United States enacted after the date of enactment of this Act, it shall mean the 49 States on the North American Continent and the District of Columbia, unless otherwise expressly provided.

OTHER SUBJECTS

SEC. 49. The amendment by this Act of certain statutes by deleting therefrom specific references to Alaska or such phrases as "Territory of Alaska" shall not be construed to affect the applicability or inapplicability in or to Alaska of other statutes not so amended.

SEPARABILITY

SEC. 50. If any provision of this Act, or the application thereof to any person or circumstances, is held invalid, the remainder of this Act, and the application of such provision to other persons or circumstances, shall not be affected thereby.

Approved June 25, 1959.

Public Law 86-71

June 25, 1959
[H. R. 6914]

AN ACT

To donate to the Confederated Tribes of the Warm Springs Reservation, Oregon, approximately 48.89 acres of Federal land.

Confederated Tribes of the Warm Springs Reservation, Oreg.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That all of the right, title, and interest of the United States in the land described below are hereby declared to be held in trust for the Confederated Tribes of the Warm Springs Reservation, Oregon: Commencing at a point 5.38 chains west of center of section 25, township 9 south, range 12 east, north 30 chains, west 17.08 chains, south 20 chains, east 2.50 chains, south 10 chains, east 14.63 chains to point of beginning, containing 48.89 acres more or less, being parts of lots 5, 6, 11, 12, and 14 of section 25, township 9 south, range 12 east, Willamette meridian, Jefferson County, Oregon.

Approved June 25, 1959.